

Sanjay @ Sanjeev Sharma v. Executive Engineer, Electricity Distribution & Ors.

High Court of Judicature at Allahabad · Division Bench · 18 February 2020 · WRIT - C No. - 5021 of 2020 · **Writ disposed of; petitioner relegated to Clause 6.14 installment application.**

HEADNOTE

The High Court will not itself fix installments for recovery of electricity dues. A consumer who accepts a reduced theft assessment and seeks time to pay must apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005; the writ was disposed of with that observation.

FACTUAL SUMMARY

On an allegation of electricity theft the petitioner was assessed more than Rs. 14 lakhs. After a representation the Executive Engineer reduced the demand to a little over Rs. 2 lakhs. Accepting that reduced liability, the petitioner approached the High Court seeking an order fixing installments for payment. On 11 and 17 February 2020 the Division Bench adjourned the matter as fresh and permitted impleadment of the State of U.P. through the Principal Secretary (Energy) and the Tehsildar, Tehsil Sadar, District Saharanpur.

REUSABLE CONSTRUCTIONS

1. The High Court does not fix installment schedules for recovery of electricity dues; the consumer must apply to the Executive Engineer under Clause 6.14 of the U.P. Electricity Supply Code, 2005, who is to consider the claim for payment in installments. ¶ 1

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility for electricity dues

HOLDING

Installments for recovery of electricity dues cannot be fixed by the High Court. Clause 6.14 of the U.P. Electricity Supply Code, 2005 permits the consumer to apply to the Executive Engineer, who is to consider the claim for payment in installments. The writ was disposed of with that observation. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Division Bench refused to fix installments itself and directed the petitioner, who had accepted a reduced theft assessment of a little over Rs. 2 lakhs, to apply under Clause 6.14 to the Executive Engineer for installment facility. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER INSTALLMENTS SHOULD BE GRANTED, AND ON WHAT TERMS

Left to the Executive Engineer on an application under Clause 6.14. ¶ 1

NOT DECIDED — CORRECTNESS OF THE ORIGINAL THEFT ASSESSMENT OR OF THE REDUCED DEMAND OF A LITTLE OVER RS. 2 LAKHS

The petitioner accepted the reduced liability; the Court did not examine the assessment. ¶ 1

